

Subject:- Kidnapping and maiming of children for the purpose of begging.

### I. Introductory:

In the conference of IGsP held in 1965, the subject of kidnapping and maiming of children for purposes of begging was discussed. It was suggested that whenever instances of begging by maimed children come to the notice of the local police, enquiries should invariably be made to find out how such children had become maimed. The circumstances under which some children from orphanages were reportedly taken out on 'daily basis' for the purpose of begging were also to be subjected to indepth enquiries. It was decided in the conference that annual drives should be launched simultaneously in all the States/UTs with the above objectives in view.

2. Every year, one week is fixed for the above purpose and surprise raids for rounding up begging children, followed by enquiries about their antecedents etc. are to be conducted. The ultimate objective of such drives is to locate the persons/gangs behind kidnapping/maiming of children for begging and for taking drastic action against such persons/gangs. In addition efforts should be made for the rehabilitation of juvenile beggars with the assistance of the appropriate States/Voluntary agencies.

3. It has been intimated by the CBI that despite this decision, nil results of such drives were often being sent. This gives the impression that surprise raids are not being conducted with the seriousness they deserve. It has, therefore, been decided vide this Hdqrs.No.27329-40/C&T.AC.I, dt.6.10.88 that the Special Staff and Vigilance Cells of each District should be entrusted with the job of organising raids with the help of the staff of Police Stations in selected areas for a period of one week each year and also to ensure that more crucial follow-up enquiries are conducted by such staffs about the persons/gangs behind such atrocities against the children, so that they are dealt with severely. DCP/Crime & DCP/Vigilance were also requested to have similar drives conducted.

### II. Legal Position:

4. Section 363(A) of the Indian Penal Code, which came into force with effect from the 15th January, 1960 reads as follows:-

363(A)"(1) Whoever kidnaps any minor or, not being the lawful guardian of a minor, obtains the custody of the minor in order that such minor may be employed or used for the purposes of begging, shall be punishable with imprisonment of either description for a term, which may extend to ten years and shall also be liable to fine.

(2) Whoever maims any minor in order that such minor may be employed or used for the purposes of begging shall be punishable with imprisonment for life, and shall also be liable to fine.

(3) Where any person, not being the lawful

guardian of a minor, employs or uses such minor for the purposes of begging, it shall be presumed, unless the contrary is proved, that he kidnapped or otherwise obtained the custody of that minor in order that the minor might be employed for the purposes of begging.

(4) In this Section:-

(a) Begging means :-

(i) Soliciting or receiving alms in a public place whether under the pretence of singing, dancing, fortune-telling, performing tricks or selling articles or otherwise.

(ii) Entering any private/premises for the purposes of soliciting or receiving alms.

(iii) Exposing or exhibiting, with the object of obtaining or extorting alms, any sore, wound, injury, deformity or disease whether on himself or any other persons or of an animal.

(iv) Using a minor as an exhibit for the purpose of soliciting or receiving alms.

(b) Minor means :-

(i) in the case of a male, a person under sixteen years of age; and

(ii) in the case of a female, a person under eighteen years of age.

### III. Responsibility of Local Police

5. In addition to the annual drives mentioned in paras 2 & 3 above all SHOs and I/C Police Posts should keep a look out for such cases in their respective jurisdictions. It has to be realised that the victimized children will seldom be able to put up their cases or appear as complainants before the police. It is, therefore, necessary on the part of the local police to secure public assistance in this respect by giving wide publicity to the provisions of law and bringing culprits to book.

6. The Police Officers should take full advantage of the presumption in sub-section, 3 of section 363-A-IPC, in pursuing suspicious cases. Whenever any children, maimed or otherwise, are found begging alongwith the adults, vigorous enquiries should immediately be taken up by the police to ascertain if they have been kidnapped for that purpose. There may be cases where minors are found begging; but the persons, or persons, in whose custody they may be staying, are not easily traceable. Suitable watch should be maintained on such children to locate their guardians. If persons, who run houses, where such children take shelter or food are found, they should be dealt with



under this section after registration of cases. The offences described in sub-sections 1 & 2 of Section 363-A IPC are cognizable and non-bailable.

**IV. Centralised investigation by Crime Br.**

7. All the cases registered under this section shall be sent to the Missing Persons Squad of Crime Branch, for investigation immediately. However, in cases where immediate action is required, the SHOs. need not wait till the arrival of an officer of the Crime Branch, but should proceed to take action as required under the circumstances of each case. It is again emphasized that responsibility for the detection of such cases rests with the local police. The Crime Branch will merely investigate these cases on account of inter-state ramifications that are invariably found in such cases.

8. During the pendency of investigation/trial of cases under section 363-A IPC, the police should have the children, whose parents or next of kins cannot be traced, placed in approved institutions like Nari Niketan, Remand Home, Poor House etc. Advantage of section 14 of the Bombay Children Act of 1924 as extended to Delhi, may also be taken if the age of the Child (both female and male) is below 16 years.

**V. Prosecutors Duties**

9. It is important that all such cases should be vigorously and promptly investigated and put in court without delay. The prosecuting officers, should also see that the courts award deterrent and exemplary punishments to the offenders.

**VI. Preparation of History Sheets**

10. History Sheets of active members of the gangs indulging in this sort of crime should be prepared and maintained by the Missing Persons Squad. A close watch should be kept on the activities of kidnappers, even after they are released from jail to prevent them for reverting to such crimes again. It is possible that such gangs or individuals may attempt to give normal and legal forms to their activities after such releases. They should be kept under close surveillance till such time as they adopt themselves to some regular work and normal life.

11. A quarterly statement about such cases shall be submitted by the Dy. Commissioner of Police, Crime Branch to the Intelligence Bureau in the following form so as to reach the IB by the 5th of the first month of the following quarter. The remarks column in the proforma should contain brief particulars of the facts of cases and modus operandi adopted by the culprits :-

| S.No. | No.of FIR,Section<br>of Law and the PS<br>at which registered | Particulars of<br>persons arrested<br>convicted or<br>discharged | Particulars<br>of missing<br>or kidnapped<br>children<br>traced by<br>the police | Remarks |
|-------|---------------------------------------------------------------|------------------------------------------------------------------|----------------------------------------------------------------------------------|---------|
| 1     | 2                                                             | 3                                                                | 4                                                                                | 5       |

This supersedes the old S.O.No.221 issued vide this Hdqrs.  
No. 28768-897/C&T, dated 23.9.60, and subsequent instructions on  
the subject.

Sd/-  
(VIJAY KARAN)  
COMMISSIONER OF POLICE:  
DELHI.

No. 35850-999/C&T.AC.II, dated Delhi, the 30/11/88